



AXEL WORKFORCE INSURANCE SOLUTIONS NATIONAL PRODUCER AGREEMENT

THIS NATIONAL PRODUCER AGREEMENT (this "**Agreement**") is made and entered into as of the date of its execution and acceptance by Airavata Group, LLC DBA Axel Workforce Insurance Solutions, a Delaware limited liability company ("**Axel**"), by and between Axel and the person or entity named on the signature page hereof ("**Producer**"). Axel and Producer are referred to collectively as the "**Parties**." As used in this Agreement, "Axel" includes Airavata Group, LLC and its affiliates, where the context requires.

BACKGROUND

Axel operates as a wholesale insurance brokerage and program intermediary, providing retail producers with access to workers' compensation insurance markets and Professional Employer Organization (PEO) and workforce solutions programs through Axel's carrier, program partner, and service provider relationships. Producer desires to place workers' compensation insurance and PEO/workforce solutions business through the insurers and program partners represented by Axel, utilizing Axel's underwriting expertise, program access, and services. Axel may also facilitate access to additional insurance and non-insurance offerings from time to time. Axel is willing to make such insurance markets and workforce resources available to Producer for placement with admitted and/or non-admitted insurers and approved service providers, subject to the terms of this Agreement.

AGREEMENTS

In consideration of the mutual promises of the Parties contained in this Agreement, it is agreed as follows:

1. Appointment. Subject to the completion of an appropriate background check, as may be required by Axel at any time (including upon application for appointment or at any time after appointment), in its sole discretion, Axel appoints Producer, in all jurisdictions where Producer is properly licensed, to offer and sell insurance products underwritten or sold by Axel, in accordance with the terms of this Agreement. Any background check or consumer report obtained in connection with this Agreement shall be procured only after Producer has received a standalone disclosure and has provided written authorization in compliance with the Fair Credit Reporting Act (15 U.S.C. § 1681 et seq.), in the form attached as Exhibit A. Producer shall not have the exclusive right to offer or sell Axel's products in any location. Axel reserves the right to dually appoint any producer, and to terminate appointments as set forth herein. In the event that Producer is dually appointed, Producer is responsible for submitting all business through the agency that Axel determines, and Producer agrees to indemnify Axel against any claims that business was processed incorrectly or through the wrong agency, and to reimburse Axel for all costs and expenses incurred in defending any such claims to the extent provided in Section 19(b).

2. Producer's Representations. As a material inducement for Axel to enter into this Agreement, Producer represents and warrants the following:

(a) Licensing. Producer is properly licensed to transact business as an agent or broker in accordance with the insurance laws, rules and regulations of each state in which Producer transacts business.

Producer will maintain such license or licenses in good standing for the duration of this Agreement and will furnish proof of such licensing upon request by Axel. Producer will promptly notify Axel of any suspension, cancellation or disciplinary action with respect to its licenses.

(b) Errors & Omissions and Cyber Coverage. Producer now has and shall maintain agent's professional liability (Errors and Omissions) insurance coverage with minimum limits of one million dollars (\$1,000,000) per claim and one million dollars (\$1,000,000) in the aggregate while this Agreement is in force, issued by an insurer reasonably acceptable to Axel. Producer shall cause Axel to be named as a certificate holder on such policy, shall furnish a certificate of insurance upon request, and shall cause the policy to provide (or shall itself provide) at least thirty (30) days' prior written notice to Axel of cancellation, non-renewal, or material reduction in coverage. Upon Axel's request, Producer shall also maintain cyber liability insurance with limits of not less than one million dollars (\$1,000,000). Axel retains the right to increase the minimum amounts or terms of such insurance as may be commercially reasonable to protect it from heightened risks.

(c) Insurance Applications. Any and all information provided in connection with any application for insurance subject to this Agreement shall be true and complete. Producer further represents and warrants that such applications shall contain no material misrepresentations of any kind. Producer shall ensure that all material facts are accurately described and completely disclosed to Axel. Further, it is the duty of Producer to make Axel aware of any material changes affecting the risk during the policy period and at any subsequent renewal.

(d) Producer Information. All information in the attached Producer Application is true and correct. Producer shall give Axel prompt notice of any change in such information.

(e) Surplus Lines Placement. Producer shall not place an order with Axel for any excess or surplus lines insurance unless Producer shall have first complied with any applicable state laws requiring Producer to attempt to procure such insurance from insurers authorized to do business in the state of residence of the proposed insured. Axel is responsible for filing surplus lines taxes. Producer shall provide all required forms, documents and paperwork to Axel in a timely manner to allow Axel to timely file surplus lines taxes.

3. Producer is an Independent Contractor. At all times during the term of this Agreement, Producer shall conduct its operations and perform its obligations hereunder as an independent contractor in accordance with the laws of each state in which it conducts business. The Parties acknowledge and agree that nothing in this Agreement is intended or shall be construed to create the relationship of employer and employee between Producer and Axel. Producer shall not, either expressly or implicitly, present itself to others as an employee of Axel or as having the authority to underwrite or approve applications for insurance. Producer is free to exercise its own judgment as to the customers to whom Producer will offer applications for insurance or non-insurance products, the time and place of any such application or offer, and the manner in which Producer will perform its obligations under this Agreement. Producer is free to determine when and where Producer takes applications for products sold or underwritten by Axel, and Axel shall have no right to dictate to Producer the days, hours or locations at which Producer works. Axel will not provide Producer with an office or other facility from which to sell the insurance and non-insurance products that are the subject of this Agreement. Axel will not be responsible for any of Producer's expenses. Producer shall be solely responsible for the payment of all income and other taxes related to Producer's work and the sale of the insurance and non-insurance products that are the subject of this Agreement. Axel will not withhold or pay taxes on Producer's behalf other than surplus lines tax payments, which will be made by Axel.

4. Agency Affiliations. Producer may not offer or sell any Axel insurance product unless Producer is affiliated with an agency that has also been appointed to sell Axel's insurance products, or Axel has authorized Producer, in writing and in advance, to offer or sell Axel insurance products without an agency affiliation. In either case, Producer must be appointed to sell Axel insurance products. Producer acknowledges that any agency with which Producer is affiliated has the right to supervise Producer's activities relating to the offer or sale of Axel's insurance products, and Producer agrees to provide each such agency with all documents and information it may request from Producer in this regard. Producer hereby authorizes each and every agency with which Producer is affiliated, and through which Producer sells or offers any Axel insurance product for sale, to share with Axel any documents and information received from Producer in connection with any such offer or sale or otherwise.

5. Internet Communications. Producer acknowledges that Axel may communicate with Producer by email, or by posting and updating commission, contract and licensing schedules, policies and procedures, and other information on a secure access producer website, and that such information will ordinarily not be mailed or provided to Producer by any other means. Producer acknowledges that Producer is responsible for reviewing Producer's email and the website on a regular basis to stay current with all information posted thereon.

6. Compliance Obligations. Producer is obligated to comply with all laws, rules, and regulations applicable to Producer's offer or sale of insurance products pursuant to this Agreement, including but not limited to those that govern licensing, continuing education, privacy, fiduciary/client trust accounts and sales practices. Producer also agrees to comply with all current and future rules, regulations, and directives of any nature issued by Axel with respect to market conduct or otherwise. Producer agrees to comply with the policies, procedures, and other terms set forth in Axel's Producer Guidelines (the "Guidelines") as in effect from time to time. Producer may access the Guidelines via Axel's secure producer website at any time. Producer acknowledges that Axel has the right to unilaterally amend, supplement, or otherwise change the terms of the Guidelines at any time, and that Producer will be bound by any amendments or changes upon Axel's publication of same. Producer is also responsible for making an affirmative determination that each purchase, sale, exchange, surrender or other transaction Producer recommends in connection with any product underwritten or sold by Axel is suitable for the purchaser.

7. Required Notifications. Producer agrees to notify Axel promptly in the event that any of the following occur: (a) Producer is the subject of, or otherwise becomes aware of, any formal or informal inquiry or investigation related to the solicitation or sale by Producer of any insurance or non-insurance products, or any privacy breach; (b) Producer is contacted by any insurance or securities regulator, for any reason; (c) Producer is or becomes the subject of any complaint related to the solicitation or sale of any insurance or non-insurance product or service, in any jurisdiction; (d) Producer is or becomes the subject of any proceeding by any insurance regulator in any jurisdiction; (e) Producer is accused of or charged with any improper conduct related to the solicitation or sale of any insurance or non-insurance product or service; (f) Producer's license to offer or sell insurance or non-insurance products is suspended or revoked in any jurisdiction; (g) Producer is convicted of any crime; (h) Producer is alleged to have committed fraud; (i) Producer is found to have engaged in any fraud; or (j) Producer files for bankruptcy. Producer also agrees to notify Axel promptly upon receipt of service of process regarding any regulatory, judicial or other proceeding regarding Producer, Axel or its products.

8. Sale of Axel's Insurance and Non-Insurance Products.

(a) Authorization. Axel authorizes Producer to solicit applications for insurance and non-insurance products that Axel may lawfully underwrite or sell, and/or which are made available through an agency with which Producer is affiliated; subject, however, to the restrictions placed upon Producer by the laws and regulations of the jurisdictions in which Producer is licensed, Axel's underwriting rules, rules

applicable to any agency with which Producer is affiliated, and the terms and conditions of this Agreement.

(b) Applications. Producer shall complete an application for each insurance or non-insurance product issued by Axel on Axel's application form. The responses to every question on every application shall completely and accurately reflect the applicant's responses, as conveyed to Producer by the applicant. All additional knowledge and information Producer has relating to the applicant's responses shall be appended to the application, with or without the applicant's consent, and transmitted to Axel with the application. In addition, Producer shall ensure that the completed application is reviewed by the applicant before it is signed by the applicant, and Producer shall also attest to its accuracy and completeness. Producer shall send the application to Axel immediately after it has been executed. Producer may only accept applications in a state or jurisdiction in which Producer and any agency with which Producer is affiliated are properly licensed.

(c) Premium Payments; Trust Account. Producer shall immediately forward to Axel or its designee any premium received with an application or otherwise delivered to Producer. Producer has no right or authority to receive or collect moneys for or on behalf of Axel at any time, for any purpose, except the initial premium offered with an insurance application. Axel may, at its discretion, authorize Producer to collect deferred or renewal premiums as and when they mature. Premium checks shall be made payable to Axel. All premiums and other funds received by Producer for the benefit of Axel or any insurer shall be received and held by Producer in a fiduciary capacity as trustee, shall be deposited into a segregated premium trust account maintained in accordance with applicable state law, shall not be commingled with Producer's operating or personal funds, and shall not be used by Producer for any personal or other purposes whatsoever. Axel has the right to collect premium payment via Electronic Funds Transfer/ACH.

(d) Inaccuracies in Applications. Producer shall notify Axel promptly should Producer become aware of any inaccuracies in an applicant's responses to any question or request for information contained on an application or elsewhere, including any changes to the applicant's responses on an application before an insurance or non-insurance product is delivered. For any insurance product delivered to Producer by Axel, Producer shall arrange for it to be delivered to the policy owners, and the premium paid in accordance with any delivery instructions issued by Axel at that time. Producer shall not permit the delivery of any insurance product unless, to the best of Producer's knowledge, the owner and insured are in insurable condition and the first premium has been fully paid. Producer shall return to Axel, upon request or on the day following the expiration of sixty (60) days after issue, any contract which was not so delivered.

(e) Rejection of Applications. Axel has the right to reject any application, cancel or rescind the sale of any insurance or non-insurance product, or permit the surrender of any such product, and in each such case, return any money submitted to the applicant or purchaser, at Axel's sole discretion. Producer may be obligated to return to Axel any commission or other payment made to Producer in connection with that application or insurance or non-insurance product, as set forth in Section 9 below.

9. Compensation.

(a) Commissions Per Compensation Schedules. Axel will pay Producer (or an agency on Producer's behalf), and Producer agrees to accept, as full compensation for the sale of Axel insurance or non-insurance products (provided the applications for the same have been accepted by Axel and paid for while Producer's authority under this Agreement remains in force), the commission or other

compensation set forth in the current and applicable Compensation Schedules, subject to the terms of this Agreement. If Axel cancels or rescinds the sale of any insurance or non-insurance product or authorizes the surrender of any such product, for any reason, such product shall be treated as though not accepted by Axel.

(b) *Renewal Commissions.* Unless modified at the option of Axel, renewal commissions shall be payable subject to the provisions and limitations of this Agreement and the then current and applicable Compensation Schedules. Axel may change its Compensation Schedules at any time upon written notice to Producer, and such changes shall apply prospectively to premiums received after the effective date of the change. Producer may access the current Compensation Schedules via Axel's secure access website.

(c) *Return of Commissions.* Producer agrees to return to Axel, within ten (10) days of demand therefor, all payments made directly or indirectly to Producer in connection with the offer or sale of any insurance or non-insurance product that was (i) not accepted by the purchaser; (ii) returned by the purchaser; (iii) unearned; (iv) not accepted by Axel or another carrier for any reason; or (v) cancelled or rescinded by Axel or which Axel authorized surrender of, for any reason.

(d) *Axel's Rejection or Rescission of Sales.* Producer acknowledges that Axel may, at its sole discretion, reject any application, cancel or rescind the sale of any insurance or non-insurance product, or authorize the surrender of any such products, and that Axel may refund premiums or other consideration paid in connection with Producer's sale of any such products for any reason, whether during or after the term of this Agreement. In the event of any such rejection, cancellation, rescission, or surrender, Producer shall forfeit all right to compensation on such products and shall return to Axel, within ten (10) days of demand therefor, any compensation paid to Producer attributable to the premiums or other consideration refunded. Recovery of costs and expenses of collection shall be governed by Section 19(b).

(e) *Commissions May Change.* Axel reserves the right to reduce first year and renewal commissions on premiums received and accepted by Axel in accordance with the applicable Compensation Schedule in effect at the time of receipt or termination, at its discretion, subject to Section 9(b).

(f) *Offsets.* Producer's right to receive any commission or other compensation provided for in this Agreement shall at all times be subordinate to the right of Axel, in its sole discretion, to offset or apply such commissions or compensation against any financial obligation Producer has (or is anticipated to have) to Axel or any affiliate, whether arising from this Agreement or otherwise. As used herein, the term "financial obligation" means any sum Axel believes in good faith to be owed by Producer (or anticipated to be owed by Producer) to Axel or any affiliate, whether or not Producer agrees and notwithstanding the absence of a judicial or other independent determination of the validity of such financial obligation or anticipated financial obligation. Recovery of costs and expenses of collection shall be governed by Section 19(b).

(g) *Post-Termination Commissions; Vesting.* If this Agreement is terminated by either Party without cause, and provided Producer has promptly accounted for and paid all premiums and return commissions for which Producer is liable and continues to comply with its surviving obligations hereunder, Producer shall remain entitled to commissions on policies placed through Axel prior to the effective date of termination, through the expiration of the then-current policy term, at the rates in effect at termination. No commissions shall be payable on renewals occurring after the effective date of termination. If this Agreement is terminated for cause pursuant to Section 17(c), or if Producer fails

to account for and pay amounts owed to Axel, all rights to unpaid and future commissions shall be forfeited as of the effective date of termination.

(h) Non-Insurance Product Compensation. Compensation, if any, payable to Producer in connection with PEO, workforce solutions, or other non-insurance products shall be set forth in a separate written referral or compensation schedule and shall be structured and paid in compliance with all applicable licensing, anti-rebating, and fee-sharing laws. Where Producer or any person receiving compensation is not licensed as required for commission-based compensation, such compensation shall be limited to flat referral fees not contingent on the placement or amount of insurance, documented in a signed referral fee agreement.

10. Non-Solicitation; Non-Circumvention. During the term of this Agreement and for a period of two (2) years following its termination for any reason, Producer shall not, directly or indirectly: (a) solicit, induce, or attempt to induce any insurer, carrier, PEO partner, program administrator, or service provider first introduced to Producer by Axel to terminate, reduce, or alter its relationship with Axel; (b) circumvent Axel by placing, or attempting to place, business directly with any such insurer, carrier, PEO partner, program administrator, or service provider with respect to programs, products, or structures made available to Producer through Axel; or (c) use Axel's Confidential Information (as described in Section 14), including program structures, pricing, underwriting guidelines, or compensation schedules, to develop, market, or place competing programs. Nothing in this Section restricts Producer from servicing its own clients or placing business through markets with which Producer had a pre-existing relationship independent of Axel, and nothing herein shall be construed as a restraint on Producer's lawful profession, trade, or business in violation of applicable law.

11. Limitations of Authority. Producer is not authorized to: (a) incur on behalf of Axel any expense, financial obligation, or liability; (b) make, alter, or discharge contracts to which Axel is a party or beneficiary; (c) waive forfeitures; (d) quote rates except as published by Axel; (e) extend the time of payment of any premium; (f) extend credit for the purpose of purchasing or keeping any insurance policy in force; (g) approve any application for insurance; (h) represent to any person that insurance is approved or in effect before Axel so acknowledges; (i) acknowledge or represent the existence of any insurance with Axel; (j) make any representation or state any opinion regarding the validity or payment of any claim; or (k) engage in any act on behalf of Axel that is not specifically authorized by this Agreement.

12. Axel Software and Other Materials. Axel may furnish Producer with policies, forms, advertising materials, software, or other supplies, as it may deem necessary. Title to these materials, as well as all undelivered policies, books, supplies, or other property furnished to Producer by Axel, shall be vested exclusively in Axel, and shall be accounted for and returned by Producer to Axel's authorized representative upon the termination of this Agreement, or at any other time upon demand. Producer may not make any modification to software furnished by Axel. Producer may not transfer, rent, sell, or in any way make that software available to anyone not employed by Producer or authorized by Axel.

13. Advertising. Producer may not purchase or otherwise contract for any advertising or promotional materials that directly or indirectly identify Axel, its insurance and non-insurance products, its practices, or its compensation rates, in any publication, on the Internet, or otherwise, unless Producer first obtains the written approval of Axel. Producer may not make any reference to Axel (including its affiliates or employees) or its insurance and non-insurance products on any website, nor may Producer make available on any website a link to Axel forms, marketing materials, or any Axel website, or to any other website that refers or relates to Axel, unless Producer first obtains the written approval of Axel.

14. Confidentiality. The Parties hereby represent and acknowledge to each other that in the course of the performance of their respective obligations, they will each make available to the other Party certain information pertaining to each Party's business and operations ("Information"). Each Party hereby agrees, as a condition to being provided the Information, that neither Party will use any Information except in connection with the performance of duties hereunder. Each Party agrees not to disclose any Information to anyone other than employees, officers and directors of such Party that have a need to know, and to cause all such persons to abide by this Agreement. The limits on use and disclosure will not apply to any Information which (a) at the time of disclosure is generally available to the public or (b) becomes generally available other than through a breach of this obligation of confidentiality. The obligations of this Section shall survive termination of this Agreement for a period of three (3) years, except with respect to trade secrets, which shall be protected for so long as they remain trade secrets under applicable law.

15. Inspection of Records. During the term of this Agreement, and for a period of three (3) years following termination for any reason, Axel shall have the right to audit and inspect Producer's books and records concerning the business to which this Agreement applies. Such right of audit and inspection shall be exercised during normal business hours upon reasonable notice to Producer. The costs of such audit and inspection, including the costs of making copies of relevant records, shall be borne by Axel.

16. Ownership of Accounts. In the event of termination, so long as Producer has promptly accounted for and paid all premiums or return commissions for which it may be liable, Producer's records, and use and control of expirations, shall remain the property of Producer; otherwise, use of records and control of expirations shall be vested promptly and exclusively in Axel. This Section is subject to Producer's continuing obligations under Sections 10 and 14.

17. Termination of Agreement. This Agreement may be terminated at any time by either Party giving written notice to the other in accordance with Section 23. This Agreement will also terminate: (a) automatically, if any public authority cancels or declines to renew Producer's license or certificate of authority; (b) automatically, on the effective date of the sale, transfer, or merger of Producer's business, provided that Axel may, upon review, appoint the successor as a Producer; or (c) immediately, upon either Party giving written notice to the other of termination because of fraud, insolvency, failure to pay balances, or willful or gross misconduct ("termination for cause"). All representations and obligations of Producer herein that by their nature are intended to survive shall survive the termination of this Agreement, including without limitation Sections 9, 10, 14, 15, 18, 19, and 24. After the date of termination of this Agreement, Producer shall complete the collection of, and accounting to Axel for, all premiums, commissions and other transactions unaccounted for on the date of termination or arising thereafter in respect of outstanding policies of insurance, including but not limited to return premium and return commissions. Outstanding policies will be permitted to run to expiration, and post-termination compensation shall be governed by Section 9(g).

18. Indemnification. Producer shall indemnify, defend and save Axel harmless from any loss, claim, liability, damage and expense (including attorney's fees and expenses of litigation or regulatory proceedings) which Axel may incur or suffer by reason of any breach of the terms, conditions, representations or warranties in this Agreement, including but not limited to any certificate or evidence of insurance issued or communicated by Producer, any material inaccuracy or misrepresentation of any term, condition or other representation by Producer, or the acts or omissions of any sub-producer or sub-broker of Producer. Producer understands that Axel assumes no responsibility for any policy with regard to the adequacy, amount or form of coverage, and agrees to indemnify and hold Axel harmless from any claim asserted against Axel arising from Axel's following the instructions of Producer. Axel is not an insurer and does not guarantee the financial condition of any insurer

with whom it may place risks. Axel shall have no liability for non-payment of claims due to the insolvency of an insurer, or otherwise, under contracts of insurance placed by Axel.

19. Governing Law; Venue; Attorneys' Fees.

(a) Governing Law and Venue. This Agreement shall be governed by and construed in accordance with the laws of the State of California (irrespective of its choice of law principles). Subject to Section 24 (Dispute Resolution), the Parties agree that any suit to enforce any provision of this Agreement, or arising out of or based upon this Agreement or the business relationship between the Parties, that is not subject to arbitration shall be brought exclusively in the federal or state courts located in Sacramento County, California, and each Party consents to the personal jurisdiction of such courts.

(b) Attorneys' Fees. In any action, arbitration, or proceeding arising out of or relating to this Agreement, the prevailing Party shall be entitled to recover its reasonable attorneys' fees, costs and expenses from the other Party. All references in this Agreement to the recovery of costs, expenses, or attorneys' fees shall be construed in accordance with this Section 19(b).

20. Limitations of Liability. Neither Party shall be liable to the other Party for any liquidated, indirect, consequential, exemplary or incidental damages (including damages for loss of business profits, business interruption, loss of business information, and the like) arising out of this Agreement, even if such Party has been advised of the possibility of such damages. This limitation shall not apply to (a) Producer's indemnification obligations under Section 18 with respect to third-party claims, (b) breaches of Sections 10, 14 or 21, or (c) Producer's obligations with respect to premium funds under Section 8(c).

21. Privacy Policy. Producer shall neither disclose nor use Nonpublic Personal Information (as that term and similar terms are defined in the Gramm-Leach-Bliley Act, 15 U.S.C. §§ 6801 et seq., and the applicable state insurance laws and regulations enacted or adopted pursuant to the Gramm-Leach-Bliley Act) that is received from or collected on behalf of Axel, except as necessary to permit Producer to perform its duties under this Agreement, or as otherwise permitted or authorized by such Act. Producer shall also implement and maintain appropriate administrative, technical and physical safeguards to protect the security, confidentiality and integrity of such Nonpublic Personal Information in accordance with applicable law, including applicable state insurance data security laws. Producer shall notify Axel promptly, and in any event within seventy-two (72) hours, of any actual or suspected breach of security involving such information. If any state insurance commission or other state or federal authority shall require Producer or Axel to meet any standards for maintaining confidentiality of client information, such Party shall promptly take all necessary and appropriate steps to comply.

22. Assignments. This Agreement and the obligations hereunder may not be assigned by Producer without the prior written consent of Axel.

23. Notices. All notices, acknowledgements, waivers, consents and other communications under or in respect of this Agreement, including notices of termination, given by either Party to the other Party shall be in writing and delivered by email to the email address specified from time to time by the other Party. Notice by email shall be deemed given upon transmission, provided the sender does not receive an automated notice of non-delivery; notices of termination shall additionally be confirmed by a delivery or read receipt, or by the recipient's written acknowledgement.

24. Dispute Resolution; Binding Arbitration. Except for (a) actions by either Party seeking temporary or preliminary injunctive relief, including to enforce Sections 10, 14 or 21, and (b) Axel's right to pursue collection of premium funds held in trust under Section 8(c) in any court of competent jurisdiction, any dispute, claim or

controversy arising out of or relating to this Agreement, or the breach, termination, enforcement, interpretation or validity thereof, shall be determined by final and binding arbitration administered by JAMS in Sacramento, California, before a single arbitrator, pursuant to the JAMS Comprehensive Arbitration Rules and Procedures then in effect. Judgment on the award may be entered in any court of competent jurisdiction. The arbitrator shall award to the prevailing Party its reasonable attorneys' fees, costs and expenses in accordance with Section 19(b). Each Party shall bear its own costs of arbitration pending such award, with JAMS fees advanced equally. THE PARTIES ACKNOWLEDGE THAT, BY AGREEING TO ARBITRATION, THEY ARE WAIVING THE RIGHT TO A TRIAL BY JURY OR IN COURT FOR DISPUTES SUBJECT TO THIS SECTION.

25. Limited Waiver of Subrogation. To the extent of insurance proceeds actually received under first-party property insurance policies maintained by either Party, Axel and Producer each waive, on behalf of themselves and their respective insurers, all rights of subrogation against the other Party with respect to loss or damage to their own property arising from or as a result of this Agreement. This waiver shall not apply to, limit, or impair: (a) any claim for indemnification under Section 18; (b) any rights of any errors and omissions or professional liability insurer; or (c) any claim arising from fraud, willful misconduct, or misappropriation of premium funds. Each Party shall use commercially reasonable efforts to cause its property insurance policies to permit this waiver.

26. Waiver of Defaults. Failure of Axel to enforce any provision of this Agreement, or to terminate it because of a breach, shall not be deemed to be a waiver of such provisions or of any breach committed by Producer. No breach of any provision of this Agreement can be waived unless done so in writing, executed by the waiving Party. The waiver of any one breach shall not be deemed to be a waiver of any other breach of the same or any other provision hereof.

27. Severability. If any clause or provision of this Agreement shall be adjudged invalid or unenforceable by a California court or other court of competent jurisdiction, or by an arbitrator, or by operation of any applicable law, it shall not affect the validity of any other clause or provision, which shall remain in full force and effect. Each of the provisions of this Agreement shall be enforceable independently of any other provision, unless expressed otherwise herein.

28. Electronic Signatures; Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. The Parties agree that this Agreement and any related documents may be executed and delivered by electronic signature (including via HelloSign/Dropbox Sign or a similar platform) in accordance with the federal Electronic Signatures in Global and National Commerce Act (E-SIGN) and the California Uniform Electronic Transactions Act (UETA), and that electronic signatures shall have the same legal force and effect as original manual signatures. Delivery of an executed counterpart by email or electronic signature platform shall be effective as delivery of an original.

29. Entire Agreement. This Agreement, together with the Producer Appointment Application, the Compensation Schedules, the Guidelines, and Exhibit A, constitutes the entire agreement between Axel and Producer and supersedes and replaces any previous agreements between Axel and Producer. No oral promises or representations shall be binding, nor shall this Agreement be modified, except by agreement in writing executed by Axel. This Agreement shall apply to current policies already placed through Axel and in force at the date hereof and all future policies which may be placed by Axel for Producer.

AXEL

AXEL WORKFORCE INSURANCE SOLUTIONS
NATIONAL PRODUCER AGREEMENT

SIGNATURE PAGE

PRODUCER (Legal Entity Name):

By (Signature):

Name:

Title:

Individual License No. / NPN:

Resident License State:

Date:

The above signatory represents to Axel that he or she is an authorized officer of Producer with full authority to execute this Agreement on its behalf.

AIRAVATA GROUP, LLC DBA AXEL WORKFORCE INSURANCE SOLUTIONS

By (Signature):

Name: Curtis Prince

Title: Founder & President

Date:

Curtis Prince is an authorized officer of Axel with full authority to execute this Agreement on its behalf. This Agreement shall become effective on the date it is signed and accepted by Mr. Prince on behalf of Axel.

EXHIBIT A
DISCLOSURE REGARDING BACKGROUND INVESTIGATION

Airavata Group, LLC DBA Axel Workforce Insurance Solutions ("Axel") may obtain information about you or your organization's principals from a consumer reporting agency for appointment-related purposes. Thus, you may be the subject of a "consumer report" and/or an "investigative consumer report," which may include information about your character, general reputation, personal characteristics, and/or mode of living, and which can involve personal interviews with sources such as professional references. These reports may be obtained at any time after receipt of your authorization and, if appointed, throughout the term of your appointment. Reports may include, to the extent permitted by law: credit reports; criminal history records; civil court records; regulatory and licensing history; and verification of professional credentials.

You have the right, upon written request made within a reasonable time, to receive a complete and accurate disclosure of the nature and scope of any investigative consumer report and a copy of your report. You may also receive a written summary of your rights under the Fair Credit Reporting Act (15 U.S.C. § 1681 et seq.).

AUTHORIZATION

I acknowledge receipt of the above Disclosure and of the Summary of Your Rights Under the Fair Credit Reporting Act, and I certify that I have read and understand both documents. I hereby authorize Axel and its designated consumer reporting agency to obtain consumer reports and/or investigative consumer reports about me (and, where I sign on behalf of an entity, about the entity) for appointment-related purposes, now and throughout any appointment, to the extent permitted by law.

Signature:

Printed Name:

Date: